

LECTURE POINTS

Kashmir Conflict

1. Introduction to Kashmir Conflict

Longest Unresolved Conflict

Kashmir is considered one of the longest unresolved international conflicts in modern history. Despite decades of negotiations, wars, and diplomatic efforts, no permanent solution has been achieved. This shows that the issue is deeply rooted in history, identity, and power politics, making it extremely difficult to resolve through simple agreements.

Origin After 1947 Partition

The roots of the conflict lie in the partition of British India in 1947, when two independent states—India and Pakistan—were created. While most regions were divided based on religious majority, princely states like Kashmir were given the option to join either country or remain independent. This created uncertainty and opened the door for conflict.

Controversial Accession

The decision of Maharaja Hari Singh to accede to India is highly controversial because it did not reflect the wishes of the Muslim-majority population. Critics argue that the accession was made under pressure and during a crisis situation. This disagreement over legitimacy remains central to the conflict even today.

Wars Between India and Pakistan

India and Pakistan have fought multiple wars over Kashmir, including in 1948, 1965, and 1999. These wars not only caused heavy human and economic losses but also deepened mistrust between the two countries. As a result, Kashmir became the core issue shaping their hostile relationship.

Multi-Dimensional Conflict

The Kashmir conflict is not only about territory. It also involves political control, religious identity, national pride, and strategic interests. Because it includes so many dimensions, any solution must address multiple concerns at the same time, which makes resolution very complex.

2. Historical Background

Cultural and Religious Diversity

Kashmir has historically been a center of cultural and religious diversity, influenced by Hinduism, Buddhism, and Islam. This led to the development of “Kashmiriyat,” a unique identity based on tolerance and coexistence. However, over time, political conflicts weakened this shared identity.

Mughal Period – Time of Prosperity

During Mughal rule, Kashmir experienced economic growth, especially in agriculture and handicrafts like shawl-making. The region also saw architectural and cultural development. However, political power remained concentrated in the hands of rulers, not the local population.

Afghan Rule – Period of Oppression

The Afghan period is often remembered as one of the harshest in Kashmiri history. High taxation, forced labor, and cruelty led to widespread suffering. This created long-lasting resentment among the people.

Sikh Rule – Continued Hardships

Under Sikh rule, many of the earlier problems continued, including economic exploitation and restrictions on religious practices. Although there was some administrative order, the general population did not experience significant relief.

Treaty of Amritsar (1846)

The Treaty of Amritsar allowed the British to sell Kashmir to Gulab Singh, the Dogra ruler, for 7.5 million rupees. This transaction treated Kashmir as property rather than a homeland of people. It laid the foundation for future political unrest and resistance.

3. Dogra Rule and Resistance

Economic Exploitation

The Dogra rulers imposed heavy taxes on agriculture, handicrafts, and daily life. Farmers and laborers suffered greatly, often falling into poverty. This economic exploitation became a major source of resentment.

Marginalization of Muslims

Despite being the majority, Muslims were excluded from political power, education, and administrative roles. This created a deep sense of injustice and inequality. Over time, it led to organized political movements demanding rights.

1931 Protests

The protests of 1931 marked the beginning of political awakening in Kashmir. Demonstrators demanded justice, rights, and an end to oppression. The violent response by authorities intensified resistance.

Formation of National Conference

Under the leadership of Sheikh Abdullah, the National Conference became a major political force. It promoted the idea of rights, representation, and social justice. It also helped mobilize the masses politically.

Quit Kashmir Movement (1946)

This movement directly challenged Dogra authority and demanded independence from monarchy. It showed that people were no longer willing to accept autocratic rule. It also set the stage for future political developments.

4. Partition of 1947

Violence and Migration

Partition led to one of the largest human tragedies in history, with widespread killings, riots, and displacement. Communities that had lived together for centuries were suddenly divided. This created deep emotional scars.

Large-Scale Migration

Around 15 million people migrated across borders during partition. This massive movement disrupted economies and social structures. Many people never recovered from these losses.

Instability in Kashmir

Kashmir faced political uncertainty and administrative breakdown during this period. The absence of clear leadership made the region vulnerable to external pressures and internal unrest.

Increased India-Pakistan Hostility

The violence of partition created deep mistrust between India and Pakistan. Kashmir quickly became the central dispute, symbolizing their broader rivalry.

5. Accession of Kashmir

Desire for Independence

Maharaja Hari Singh initially wanted Kashmir to remain independent. He signed standstill agreements with both India and Pakistan to maintain peace. However, this neutral position could not be sustained for long.

Tribal Invasion (October 1947)

Tribal fighters from Pakistan's side entered Kashmir, leading to chaos and conflict. This forced the Maharaja to seek immediate military assistance from India. This event changed the political direction of Kashmir.

India's Condition

India agreed to provide military help only if Kashmir formally joined it. This created a direct link between security assistance and political decision-making.

Instrument of Accession

The signing of the Instrument of Accession on 26 October 1947 made Kashmir legally part of India according to Indian claims. However, its validity is still debated internationally.

Ongoing Controversy

Pakistan argues that the accession ignored the will of the people, while India considers it final. This disagreement remains one of the core issues of the conflict.

6. Role of United Nations

Issue Taken to UN (1948)

India referred the Kashmir issue to the United Nations, internationalizing the conflict. This brought global attention but also complicated the resolution process.

Ceasefire and Plebiscite Proposal

The UN proposed a ceasefire followed by a plebiscite to let Kashmiris decide their future. This was considered a fair democratic solution at the time.

Division of Kashmir

The ceasefire resulted in the division of Kashmir along the Line of Control (LoC). This division created two separate regions administered by India and Pakistan.

Unfulfilled Plebiscite

The plebiscite was never conducted due to disagreements over conditions. This failure remains one of the biggest unresolved aspects of the conflict.

7. Wars and Conflict

Multiple Wars

The wars of 1948, 1965, 1971, and 1999 show the repeated failure of peaceful solutions. Each conflict increased tensions and hardened positions on both sides.

Kargil Conflict (1999)

The Kargil conflict was a serious escalation that brought both countries close to full-scale war. It also attracted international concern due to the risk of nuclear confrontation.

Nuclear Powers

Both India and Pakistan are nuclear-armed states. This raises the stakes of any conflict, making it not just a regional issue but a global security concern.

Ongoing Military Tension

Frequent ceasefire violations and border clashes show that the conflict remains active. This constant tension affects both military stability and civilian life.

8. Article 370 and 2019 Changes

Special Status of Kashmir

Article 370 allowed Jammu and Kashmir to have its own constitution and autonomy. This arrangement was meant to respect its unique identity.

Protection Under Article 35A

Article 35A protected local ownership of land and jobs. It helped preserve the demographic and cultural structure of the region.

Revocation in 2019

India revoked these provisions on 5 August 2019, marking a major shift in policy. It aimed to integrate Kashmir fully into the Indian Union.

Conversion into Union Territories

The region was reorganized into union territories, reducing its political autonomy. This decision changed the governance structure significantly.

Global Reaction

Many international organizations and countries raised concerns about human rights and legality. However, no major intervention followed.

9. Militarization

Heavy Military Presence

Kashmir is among the most militarized regions in the world, with a constant presence of armed forces. This reflects the seriousness of the conflict.

Large Number of Troops

The deployment of hundreds of thousands of troops shows the level of security concern. However, it also increases pressure on civilians.

Special Laws (AFSPA & PSA)

These laws give extraordinary powers to security forces, including detention without trial. Critics argue that they enable human rights violations.

- **AFSPA – Armed Forces (Special Powers) Act**
This law gives special powers to the armed forces in “disturbed areas.” Under AFSPA, forces can arrest without a warrant, use force, and even open fire in certain

situations. It is justified as necessary for security but is widely criticized for misuse and lack of accountability.

- **PSA – Public Safety Act**

This law allows authorities to detain individuals without trial for extended periods to prevent activities seen as a threat to public order or security. Critics argue that it is often used to detain political activists and civilians without sufficient legal safeguards.

Impact on Civilians

Daily life is heavily affected by checkpoints, curfews, and surveillance. This creates fear, stress, and a sense of insecurity among the population.

10. Insurgency and Resistance

1987 Elections Controversy

Allegations of rigging in the 1987 elections destroyed public trust in democratic processes. Many people believed peaceful change was impossible.

Rise of Militancy

As a result, armed resistance increased in the late 1980s. Youth joined militant groups, leading to prolonged violence.

Role of JKLF

The Jammu and Kashmir Liberation Front initially demanded independence rather than merger with Pakistan or India. It played a key role in early militancy.

Frequent Protests

Public protests, strikes, and demonstrations became common. These reflect ongoing dissatisfaction and demand for rights.

11. Human Rights Violations

Reports of Violence

Various reports highlight extrajudicial killings, torture, and excessive use of force. These incidents damage the credibility of authorities.

Pellet Gun Injuries

Pellet guns have caused severe injuries, including blindness. Their use has been widely criticized by human rights groups.

Enforced Disappearances

Thousands of people are reported missing, creating long-term trauma for families. This issue remains unresolved.

International Concerns

Organizations like Amnesty International and Human Rights Watch continue to raise concerns. However, enforcement of accountability remains weak.

12. Women in Kashmir

Gender-Based Violence

Women are often victims of violence in conflict situations. This includes harassment and sexual abuse.

Psychological Impact

Continuous conflict causes mental health issues such as anxiety, depression, and trauma. Women are particularly affected due to social responsibilities.

Half-Widows

Women whose husbands have disappeared live in uncertainty, neither widowed nor married. This creates legal and economic challenges.

Role in Protests

Women actively participate in resistance movements. Their involvement shows both resilience and political awareness.

13. Political Developments

Leadership of Sheikh Abdullah

Sheikh Abdullah played a central role in shaping Kashmiri politics. He advocated for autonomy and representation.

Political Instability

Frequent dismissal of governments weakened democratic institutions. This created a lack of trust in governance.

Turning Point of 1987

The 1987 elections marked a shift from political participation to armed resistance. It remains a defining moment.

14. Geopolitical Importance

Strategic Location

Kashmir lies at the crossroads of South Asia, Central Asia, and China. This makes it extremely important for regional power politics.

Water Resources

Major rivers like the Indus originate from Kashmir, making it vital for Pakistan's agriculture and economy. Control over water increases its strategic value.

Military and Economic Value

Kashmir provides military advantage due to its terrain and location. It also has potential for trade routes and connectivity.

15. Current Situation

Continued Militarization

Security forces remain heavily deployed. The situation is tense and unpredictable.

Communication Restrictions

Internet shutdowns and media control limit information flow. This affects transparency and global awareness.

International Attention

Although the issue is discussed globally, effective action is limited. This shows the constraints of international politics.

Conclusion

Unresolved Conflict

Kashmir remains an unresolved issue despite decades of efforts. It continues to affect regional stability.

Complex Nature

The conflict involves multiple dimensions—political, territorial, religious, and humanitarian. This complexity makes solutions difficult.

Need for Dialogue

A peaceful resolution requires dialogue between India, Pakistan, and the Kashmiri people. Inclusive negotiations are essential for lasting peace.

Geopolitical Importance of Kashmir

1. Important Location

Kashmir is located at a very strategic point where India, Pakistan, and China meet. This makes it extremely sensitive because any tension here can directly involve multiple countries.

Example: Border tensions in Kashmir often lead to military alerts not only in India and Pakistan but also concern China, especially in Ladakh areas.

2. Between Two Nuclear Countries

India and Pakistan are both nuclear powers, which makes the Kashmir conflict very dangerous. Even a small clash can escalate into a larger war with serious global consequences.

Example: During the **Kargil War**, the world feared that the conflict could turn into a nuclear war, which increased international pressure to stop it.

3. Importance for China

China controls a part of Kashmir known as Aksai Chin and has strategic interests in the region. It has built roads and infrastructure to connect its regions.

Example: The China–Pakistan Economic Corridor passes through Gilgit-Baltistan, which is close to Kashmir. China wants stability here to protect its trade and investment projects.

4. Water Resources

Kashmir is the origin of major rivers like the Indus River, Jhelum River, and Chenab River. These rivers are extremely important for agriculture and daily life, especially in Pakistan.

Example: Pakistan's farming system depends heavily on Indus water. Any control or restriction over these rivers can directly affect crops, food supply, and the economy.

5. Military Importance

Kashmir's mountainous terrain gives a strong military advantage. High mountains make it easier to monitor enemy movement and defend borders.

Example: The Siachen Glacier is one of the highest battlefields in the world. Both India and Pakistan maintain troops there because of its strategic importance.

6. Trade Routes

Kashmir has the potential to become a key trade link between South Asia and Central Asia. If peace is achieved, it can open new economic opportunities.

Example: Roads through Kashmir could connect Pakistan and India to Central Asian countries like Kazakhstan and Uzbekistan, improving trade and energy supply.

7. Global Attention

Kashmir is not just a local issue; it attracts global attention because it involves nuclear powers and regional stability.

Example: Organizations like the United Nations have passed resolutions on Kashmir, and major powers like the US and China often comment on the situation.

8. Regional Stability

The Kashmir conflict directly affects peace in South Asia. Whenever tensions rise, the whole region becomes unstable.

Example: Cross-border firing along the Line of Control (LoC) often leads to civilian casualties and displacement, affecting nearby areas in both countries.

9. Political Importance

For Pakistan, Kashmir is important because it has a Muslim-majority population and is seen as incomplete partition. For India, it represents national unity and territorial integrity.

Example: Political leaders in both countries often highlight Kashmir in speeches, showing how deeply it is connected to national identity.

10. Role in Foreign Policy

Kashmir plays a major role in shaping the foreign policies of India and Pakistan. It affects their relations with other countries and global organizations.

Example: Pakistan regularly raises the Kashmir issue at international forums like the United Nations, while India considers it a bilateral matter.

11. Economic Importance

Kashmir has economic value due to tourism, natural resources, and large-scale projects. Stability can boost economic growth.

Example: The China–Pakistan Economic Corridor increases the importance of nearby regions by connecting trade routes, energy pipelines, and infrastructure networks.

12. Environmental Importance

Kashmir has important glaciers, forests, and natural resources that support millions of people. Climate change is affecting these resources.

Example: Melting glaciers in the Himalayas can reduce water supply in the future, creating water shortages and increasing conflict over resources.

Conclusion

Kashmir is geopolitically important because of its strategic location, water resources, military value, and global attention. It is not just a territorial dispute but a complex issue affecting regional stability and international peace.

A peaceful solution is necessary not only for India and Pakistan but also for the security and development of the entire region.